

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jason Zachary Resnikoff	Team: Team # 4	CCRB Case #: 201013662	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 10/05/2010 3:50 PM	Location of Incident: Long Street and 117th Avenue	18 Mo. SOL 4/5/2012	Precinct: 113		
Date/Time CV Reported Tue, 10/05/2010 5:41 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 10/05/2010 5:41 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Mark Sinatra	28505	944174	113 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Daniel Brandi	20550	943018	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Mark Sinatra	Discourtesy: PO Mark Sinatra spoke obscenely to § 87(2)(b)	A . Complainant Uncooperative
B . POM Mark Sinatra	Abuse: PO Mark Sinatra threatened to arrest § 87(2)(b)	B . Complainant Uncooperative
C . POM Mark Sinatra	Discourtesy: PO Mark Sinatra acted rudely toward § 87(2)(b)	C . Complainant Uncooperative
D . POM Mark Sinatra	Abuse: PO Mark Sinatra refused to provide his name and shield number to § 87(2)(b)	D . Complainant Uncooperative

Case Summary

On October 5, 2010, § 87(2)(b) filed a complaint with IAB, generating log number 10-49699, which was referred to the CCRB the same day. She also called in her complaint directly to the CCRB and left a message with the call processing system. § 87(2)(g)

On October 5, 2010, at approximately 3:50 p.m., § 87(2)(b) was pulled over by a marked RMP at 117th Avenue and Long Street in Queens. PO Daniel Brandi, the operator of the patrol car, approached the driver's side of § 87(2)(b) car and asked for her license, which she provided. After several minutes, PO Mark Sinatra approached the driver's side of § 87(2)(b) car and gave her two summonses, one for not having any registration, and one for running a stop sign. As PO Sinatra turned to leave, § 87(2)(b) said, "I don't believe this shit." PO Sinatra turned around and said, "What the fuck did you say?" (**Allegation A**). § 87(2)(b) said, "I don't believe this," and PO Sinatra responded, "You've got two seconds to give me your goddamn license or I'm going to snatch your fucking ass out of the car, slap the cuffs on you and throw your ass in the back of the fucking police car" (**Allegations A and B**). § 87(2)(b) § 87(2)(b) complied and PO Sinatra returned to the patrol car. After twenty-five minutes, PO Sinatra returned to the driver's side of § 87(2)(b) car with another summons folded around her license. He threw the license and summons into the car and told § 87(2)(b) to "pick it up off the floor" (**Allegation C**). § 87(2)(b) asked for PO Sinatra's name and badge number, but he provided neither (**Allegation D**).

PO Mark Sinatra's name and tax number were written on the summonses issued to § 87(2)(b). The initial IAB report also identified PO Mark Sinatra as the subject officer. ARCS identified PO Sinatra's partner as PO Daniel Brandi. § 87(2)(b) did not witness PO Sinatra fill out the summonses. She did provide descriptions of both officers, although she did not know the names of either. She described the subject officer as a white male, approximately 5'7", 180 pounds, with very closely cropped hair, and the witness officer as a white male, 5'9", 185 pounds, with light brown hair. PO Sinatra is six inches shorter than PO Brandi, and his MOS photo shows him with a very close haircut, while PO Brandi's photo shows him with longer, dark hair. § 87(2)(g)

Two letters were sent to § 87(2)(b) one on January 31, 2011, and another on February 2, 2011, informing her that failure to respond would result in the closing of her case. Including the call in which § 87(2)(b) provided a telephone statement, a total of five calls were made to § 87(2)(b). As of the writing of this report, § 87(2)(b) has not contacted the CCRB. It is therefore recommended that Allegations A, B, C and D be closed, **Complainant Uncooperative**.

Team: 4

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Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature Print Date